

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX** **X**

NICHOLAS O'MEALLY

Plaintiff,

-against-

CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER RUBEN SERRANO
IN HIS INDIVIDUAL AND OFFICIAL CAPACITY,
AND JOHN DOES 1-8, IN THEIR INDIVIDUAL
AND OFFICIAL CAPACITY.

Defendants.

ECF
VERIFIED COMPLAINT

Index No.

**Plaintiff Designates Bronx
County as the Place of Trial.**

X

Plaintiff, Nicholas O'Meally, by his attorney, Welton K. Wisham, of the Law Office of Welton K. Wisham, alleges upon information, and belief, the following against Defendants, The City of New York, The New York City Police Department, New York City Police Officers, Ruben Serrano of the 40th Police Precinct Shield No. 13592, and John Does 1-8, that;

JURISDICTION

1. Jurisdiction of this Court is invoked pursuant to 42. U.S.C Section 1983. This action also arises under the Fourth and Fourteenth Amendments to the Constitution of the United States and under New York State law.

VENUE

2. This Court has personal jurisdiction over the defendants because the defendants committed a tortious act inside the State of New York, County of the Bronx, causing injury to the Plaintiff within the State of New York. This Court also has concurrent

jurisdiction over Plaintiff's civil rights causes of action based on 42. U. S. Code Section, 1983.

PARTIES

3. Plaintiff Nicholas O'Meally is a citizen of the United States and at all times here relevant resided in Bronx County, City of the Bronx, and State of New York.

4. That at all times relevant herein, Defendant Ruben Serrano, was duly appointed as a police officer of the New York City Police Department and was acting within the scope of his employment as an employee of the New York City Police Department.

5. That the Defendant police officer, Ruben Serrano, upon information and belief, is a current member of the New York City Police Department assigned to the 40th police precinct located at 257 Alexander Ave., Bronx, NY, 10454-1133 New York.

6. That the individual police officers involved in the incident underlying this lawsuit were at all times mentioned in this complaint, agents, servants, and employees, acting within the scope of their employment by Defendant City of New York, and were duly appointed police officers in the New York City Police Department acting within their individual, and official capacity, and under color of law, that is under color of law of the Constitution, statutes, laws, charter, ordinances, rules, regulations, custom and usages of the State of New York, and the City of New York.

7. That the Defendant, City of New York, is a municipal corporation within the State of New York.

8. Pursuant to Section 431 of its Charter, the City of New York has established and maintains the New York City Police Department as a constituent department or agency.

9. That at all times relevant hereto, the City of New York employed the defendant Police Officers involved in this incident.

10. At all times relevant hereto, Defendant City of New York, acting through the New York Police Department (or "NYPD"), was responsible for the policies, practices, supervision, implementation, and conduct of the Defendant police officers.

11. That at all times relevant hereto, Defendant City of New York, acting through the New York Police Department (or "NYPD"), was responsible for the New York City Police Department practices, and procedures including the appointment, training, supervision, discipline and retention of the Defendant officers and of all NYPD officers.

12. That at all times relevant hereto, Defendant City of New York was responsible for enforcing the rules of the NYPD, and for ensuring that on-duty NYPD personnel obey the laws of the United States and the State of New York.

13. That police officer Ruben Serrano, upon information, and belief, was at all times relevant hereto under the command of the 40th Precinct of the NYPD who arrested Mr. O'Meally on the morning of June 13, 2014.

14. That Defendants John Does 1-8, were at all times herein relevant, acting in the capacity of an agent, servant and employees of the City of New York Police Department.

15. At all times here mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City, and State of New York.

PRELIMINARY STATEMENT

16. This is a civil rights action in which Plaintiff seeks relief for the violation of his civil rights secured under the provisions of 42 U.S.C Section 1983, , and under the Fourth, and

Fourteen Amendments to the Constitution of the United States and under New York State law.

NOTICE OF STATEMENT OF CLAIM

17. That within 90 days of the dismissal of Plaintiff's criminal charges, Plaintiff filed a written Notice of Claim with the New York City Office of the Comptroller (Claim number: 22017PI028498.

18. That more than 100 days have elapsed since the filing of the notice of claim and this matter has not been settled or otherwise disposed of.

FACTUAL ALLEGATIONS

19. That on or about June 13, 2014, at approximately 12:45 AM, Mr. O'Meally was seated in the front passenger side of his vehicle that he authorized his friend Andrew Woodberry to drive.

20. Fredrick Jones was seated in the rear passenger side of the vehicle when Defendants Ruben Serrano and several other New York City Police Officers stopped the vehicle and ordered all the occupants to get out of the vehicle.

21. O'Meally, and Andrew Woodberry and Fredrick Jones, were all arrested on or near the Southwest corner of Third Ave., and East 147th street, Bronx, New York by Defendant Police officer Serrano, and several other members of the New York City Police Department.

22. That the Defendant stopped the vehicle in which Plaintiff was driving due to alleged unlawful tinted windows.

23. That officer Serrano alleged that he observed Nicholas O'Meally, Andrew Woodberry, and Fredrick Jones to have in their custody and control on the floor of the rear passenger side of the vehicle, a loaded weapon.

24. That Plaintiff O'Meally vehemently denied knowing about a weapon in the vehicle which he was driving.

25. That Plaintiff was surrounded by ten to twenty police officers at the time of his arrest all of whom pulled out their service revolvers and pointed their weapons into the face of the occupants including the Plaintiff.

26. That the officers on the scene failed to inform Mr. O'Meally the reason for his arrest.

27. That as Plaintiff O'Meally was seated behind the steering wheel of the vehicle, one of the officers ordered Mr. Jones who was seated in the back of the vehicle to get out.

28. That Mr. O'Meally was arrested along with the other occupants and charged with the following crimes: P.L. Section 265.03(1)(b), Criminal Possession of a Weapon in the 2nd Degree, P.L. Section 265.02(8) Criminal Possession in the Third Degree, P.L. Section 265.01-b(1), P.L. Section 265.01(1) Criminal Possession of a Weapon in the Fourth Degree, and A.C. 10-131(i)(3), Possession of Ammunition.

29. That Mr. O'Meally was forced to defend against the charges from the date of his arrest, June 13, 2014, until the date all charges against him were dismissed on July 12, 2017, more than three years from the date Plaintiff protested his innocence.

30. That all charges were favorably dismissed on July 12, 2017, by the Hon. R. Fabrizio.

31. Plaintiff was forced to appear in criminal court twenty two times over the course of three years to defend against the charges brought by officer Serrano.

32. That the Bronx District Attorney's office was negligent in not ascertaining the proper owner of the weapon allegedly found underneath the seat of the vehicle in front of Fredrick Jones.

33. That Mr. O'Meally had no knowledge of a weapon that was allegedly found by Defendant Serrano underneath the rear passenger seat of the vehicle in which Plaintiff was a passenger at the time of his arrest.

34. That the City of New York failed to conduct finger print analysis and or any DNA testing over the course of three years which would have exonerated the Plaintiff Nicholas O'Meally.

35. That the arrest and search of the vehicle lacked probable cause and that the continued prosecution of Mr. O'Meally was reckless in that officer Serrano did not have reasonable cause to believe that Plaintiff O'Meally was in constructive possession of a weapon.

36. That Mr. O'Meally did not exercise dominion or control over the weapon that officer Serrano accused the Plaintiff of possessing and that there was no probable cause to continue the prosecution of the Plaintiff over a period of three years.

37. That during the three years in which Plaintiff was ordered to appear in criminal court; Mr. O'Meally lost his position as a construction worker as well as his position as a clerk in a commercial store in the Bronx, New York.

38. Officer Serrano and approximately ten other police officers surrounded the Plaintiff and pulled out their police issued revolvers and pointed their weapons directly into the face of the Plaintiff while he remained seated as a passenger in the vehicle.

39. That officer Serrano handcuffed O'Meally and took him to the 40th precinct where he was held for approximately twenty four hours and then transported to central booking and then to the Vernon Cain boat facility where he remained for approximately thirty days.

40. Plaintiff kept informing the arresting officers that he didn't know anything about a gun found in his vehicle.

41. That after three years all charges against the Plaintiff were favorably dismissed.

42. That officer Serrano acted recklessly in testifying in front of the grand jury that he observed a weapon on the floor of the rear passenger side of the vehicle.

43. That as a proximate and direct result of the prolonged prosecution of the Plaintiff by officer Serrano, Mr. O'Meally suffered severe emotional pain and suffering.

44. That the Bronx District Attorney office knew or should have known prior to the July 12, 2017 dismissal that Nicholas O'Meally did not have the requisite "knowing possession of a weapon" and that the continued prosecution of the Plaintiff was malicious and without probable cause .

45. That the continued prosecution of Mr. O'Meally throughout a three year period lack probable cause to reasonably believe that Plaintiff knowingly possessed a weapon.

46. That probable cause dissipated which officer Serrano and the Bronx District Attorney office knew or should have known that there was no probable cause to continue O'Meally's prosecution.

47. That a person "Knowingly possesses a firearm when that person is aware the he or she is in possession of such firearm.." Penal Law Section 15.05 (2).

48. That the Bronx District Attorney's Office in reliance of Officer Serrano's testimony given in the grand jury could not prove that Nicholas O'Meally knowingly possessed a firearm.

49. That the Bronx District Attorney's office and Officer Ruben Serrano charged O'Meally with the above stated crimes without probable cause to believe that O'Meally possessed the required intent to use the weapon unlawfully against another.

50. That officer Serrano was reckless in charging Nicholas O'Meally with the above stated crimes which requires the mental state of mind of "Intent to use such weapon and ammunition unlawfully against another.

51. That officer Serrano was reckless in charging O'Meally and was reckless in providing testimony that O'Meally had the requisite intent to use a weapon and ammunition unlawfully against another person.

52. That Officer Serrano acted with malicious intent to deprive O'Meally of his constitutional right to be free from criminality without probable cause.

53. That Defendant Serrano knew or should have known prior to July 12, 2017, that Plaintiff did not have the requisite conscious objective or purpose to possess a weapon with intent on using such weapon unlawfully.

54. That Plaintiff wrote a statement to the police officers while in the 40th precinct that he did not know of a weapon found in his motor vehicle.

AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF NICHOLAS O'MEALLY AGAINST DEFENDANT POLICE OFFICER RUBEN SERRANO FOR MALICIOUS PROSECUTION UNDER NEW YORK STATE LAW AND UNDER 42 U.S. CODE SECTION 1983.

55. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "54", with the same force and effect, as though more fully set forth at length herein.

56. That the Defendants, City of New York, by their agents, servants and / or agents, including but not limited to defendant Police officers Ruben Serrano and John Does 1-8, were acting within the scope of their employment, and who falsely, and maliciously, without probable cause, charged the plaintiff with crimes, and arrested the plaintiff, and continued the unlawful prosecution against plaintiff knowing that plaintiff had not been engaged in any form of unlawful activity.

57. That the Defendants, knew or should have known prior to July 12, 2017, that probable cause to believe that O'Meally possessed a weapon with the intent of using such weapon unlawfully on another had in fact dissipated yet the Defendants continued their prosecution of the Plaintiff with a reckless disregard for his constitutional rights.

58. That officer Ruben Serrano initiated criminal charges against the Plaintiff whereby he knew or should have known were unlikely to result in a criminal conviction of the Plaintiff.

59. That all the charges against the plaintiff were terminated in favor of the plaintiff.

60. That by reason of the foregoing, the plaintiff has been injured and has suffered great emotional, and mental distress, and has been greatly injured, and sustained damages in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR AN SECOND CAUSE OF ACTION ON BEHALF OF PLAINTIFF
NICHOLAS O'MEALLY AGAINST DEFENDANTS, CITY OF NEW YORK, UNDER
RESPONDEAT SUPERIOR.**

61. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “ 1” through “60”, with the same force and effect as though more fully set forth at length herein.

62. That the municipal Defendants City of New York, and the New York City Police Department, hired, and supervised ,the individual Defendants Officers Ruben Serrano and John Does 1-8.

63. Officers Serrano and John Does 1-8, individually and collectively, committed the wrongs stated herein while acting within the scope of their duties as employees of the City of New York and the New York City Police Department.

64. Officer Serrano outranked other individual Defendants who participated in the unlawful acts stated herein against Plaintiff O’Meally .

65. Officer Serrano is believed to have had supervisory authority over those offices that he outranked.

66. The City of New York is also responsible for the Bronx Attorney’s Office which prosecuted the Plaintiff and who continued the prosecution without the requisite probable cause to have believed Plaintiff could be found guilty of a crime.

67. As a result, the Municipal Defendants, City of New York and The New York City Police Department are liable for the unlawful acts of their employees, and subordinates, under respondeat superior.

**AS AND FOR PLAINTIFF’S THIRD CAUSE OF ACTION AGAINST THE CITY
OF NEW YORK FOR MUNICIPAL LIABILITY UNDER 42 U.S.C. SECTION
1983.**

68. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered”1 through “67” with the same force and effect as though more fully set forth at length herein.

69. That at all relevant times herein, Defendant City of New York, acting through its New York City Police Department developed, maintained, implemented, enforced, encouraged, and sanctioned de facto policies, practices and or customs exhibiting deliberate indifference to the Plaintiff's constitutional rights which caused the violation of such rights.

70. The Defendants unlawful actions were done willfully, knowingly and with the specific intent to deprive Plaintiff of his constitutional rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

71. That the acts, omissions, and practices alleged herein constitute a pattern or practice of conduct that violates the rights privileges and immunities of the Plaintiff which are secured or protected by the Constitution of the United States.

72. That the conduct complained of herein by New York City Police Department and the Bronx District Attorney's office amounted to a practice and policy of deliberate indifference to Plaintiff's constitutional rights to be free from continuous prosecution when in fact probable cause for such prosecution dissipated long before cases such as the instant action have been favorably dismissed.

73. That the Defendants knew or should have known of the deficiencies alleged herein and that the New York City Police Department and the Bronx District Attorney's Office failure to supervise and train their subordinate in determining the dissipation of probable cause related to constructive possession of weapons and the related charges thereof, amounts to deliberate indifference to the Plaintiff's Constitutional rights protected under the Fourth, and Fourteenth Amendments.

74. That the Defendants' deliberate indifference caused the violations of the Constitutional rights alleged herein.

75. The acts and omissions set forth herein were carried out by the aforementioned individual Defendants, and subordinates in their official capacity as police officers of the New York City Police Department and through the Bronx District Attorney's Office pursuant to the customs, policies and practices under color of state law.

76. That the failure to supervise train and or discipline the Defendant officers and the prosecutors in the Bronx District Attorney's Office resulted in a custom, policy or practice that served as the moving force behind the constitutional violations suffered by Plaintiff Nicholas O'Meally.

77. As a direct and proximate result of the foregoing practices and customs, Plaintiff was maliciously prosecuted and made to appear twenty two times in criminal court to defendant against charges alleged by officer Ruben Serrano.

78. That the constitutional abuses, and violations by the City of New York through the actions of the Defendant officers and employees, and by the Bronx District Attorney's office were directly and proximately caused by policies, practices and customs developed, implemented, enforced, encouraged, and sanctioned by the Defendant, City of New York.

79. Defendants' unlawful actions were done willfully, knowingly and with the specific intent to deprive Plaintiff of his constitutional rights.

80. As consequence thereof, Plaintiff has been greatly injured.

WHEREFORE, Plaintiff demands judgment and relief against Defendants jointly and severally as follows:

A. Awarding Plaintiff compensatory damages in an amount that is fair and equitable to be fixed at trial.

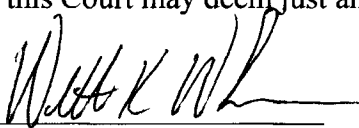
B. Awarding punitive damages to Plaintiff in an amount that would punish Defendants for the willful, wanton, reckless and malicious misconduct alleged in this Complaint that would effectively deter Defendants from future civil rights violations and other unlawful behavior in an amount to be determined at trial.

C. An award to plaintiff of the costs and disbursements herein.

D. An award of reasonable attorney fees under 42 U.S.C. Section 1988.

E. Granting such other and further relief as this Court may deem just and proper.

Dated; July 5, 2018
New York, New York



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